

TENTATIVE RULING Wednesday August 5, 2026

Department 35 Michael A. Dauber Judge

Tentative Rulings for Department S35, if posted, are on court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) by 3:00 p.m. and 7:00 p.m. on the court day before the hearing (in some cases, on a non-court day before the hearing). If no tentative ruling is posted by 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8707 in advance of the hearing. If all parties submit on a tentative ruling, the tentative ruling will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Prior to the hearing, you can email the completed Stipulation to Department S37 at AGear@sb-court.org. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CASE NUMBER: CIVSB2422284 Everardo Franco v. Terrence Scott, et al.

Motion(s): Summary Judgment

Movant: Defendant The People of the State of California, acting by and through the Department of Transportation (esa sued as State of California)

Respondant(s): Plaintiff Everado Franco

DISCUSSION

TYPE OF CASE:

This is a personal injury action. On July 10, 2024, Plaintiff Everardo Franco filed his Initial Complaint against Defendants Terrence Scott (Scott) and The People of the State of California, acting by and through the Department of Transportation (esa sued as State of California) (Caltrans). The operative First Amended Complaint (FAC) alleges the following two causes of action against Defendants: (1) negligence (against Scott); and (2) dangerous condition of public property (against Caltrans). Scott was defaulted. Caltrans answered and filed a Cross-Complaint against Scott. Plaintiff alleges that on January 11, 2023, he was riding his bicycle heading northbound intersecting the ramp to the US I-15 S on Palmdale Road in Victorville when he was struck by a vehicle driven by Scott, who was driving eastbound on Palmdale Road approaching the US I-15 S Ramp. (FAC ¶¶ 11-12.) Scott was traveling at an excessive speed when he struck Plaintiff. (FAC ¶¶ 13-14.)

Plaintiff further alleges the pedestrian walkway was lacking in traffic controls for pedestrians, flash roadway lighting to indicate the crosswalk is in use, bar lines to indicate to vehicles the existence of a crosswalk, and pedestrian crossing signage laid completely and directly in the path of the I-15 South on ramp where vehicular traffic merges, creating a hazardous situation for both pedestrians and drivers due to reduced visibility and increased risk of accidents. (FAC ¶ 24.)

Caltrans submitted a motion for Summary judgment. Franco opposes. Caltrans replied.

RULING

Evidentiary Ruling:

CalTrans objects to the following: Exhibit G. The court **sustains** the objection on CEC 702; 1400; 1410; Concerning Exhibits H, B, F the court **overrules** the objections because the objections lack merit; The objections concerning the identified parts of the Shatnawi's Declaration Executed on July 9th 2026 is **overruled** as these objections go to weight not admissibility.

Design Immunity under Government code section 830.6:

Government Code section 830.6 confers immunity on public entities for injuries attributed to a design feature when the design is approved prior to construction by appropriate officials or plans conform to previously approved standards and the design plans are reasonable. (Gov. Code, § 830.6.) When design immunity is established, a court may deny recovery even if a dangerous condition is shown. (*Gonzales v. City of Atwater* (2016) 6 Cal.App.5th 929, 945-946 (*Gonzales*).) Government Code section 830.6 requires a public entity to prove three elements: (1) a causal relationship between the plan or design and a plaintiff's injuries, (2) discretionary approval of the plan or design prior to construction, and (3) substantial evidence supporting the reasonableness of the plan or design. (*Gonzales, supra*, 6 Cal.App.5th at pp. 945-946.) Design immunity "is limited to a design-caused accident" (*Flournoy v. State of California* (1969) 275 Cal.App.2d 806, 811), and the injury-producing feature must have been part of the plan approved by the entity. "If the injury-producing element was not part of the discretionary approved design, immunity

is defeated.” (*Grenier v. City of Irwindale* (1997) 57 Cal.App.4th 931, 941, fn. 7 (*Grenier*); see also *Cameron v. State of California* (1972) 7 Cal.3d 318, 325-326.)

Caltrans emphasizes that the ordinary summary judgment rules “are not fully applicable” to design immunity. That is true of the third element, “substantial evidence of reasonableness,” which the court resolves. Everything else in this motion, causation and discretionary approval, the three loss-of-immunity elements, dangerousness, notice, the section 830.8 concealed-trap exception, and proximate cause, is a question of fact governed by ordinary summary judgment standards. (*Cornette v. Department of Transportation* (2001) 26 Cal.4th 63, 66-67, 74-75; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1133.)

So here, as alleged, the injury-producing condition is a pedestrian crossing over a freeway on-ramp devoid of any marking, delineation, warning, or control. By Caltrans’ own admission, the 2010 plans contained no crosswalk, no pavement delineation sheet, and no signage addressing the crossing whatsoever (UF Nos. 33 and 48; Alejandro Depo. at 20:6–16, 29:9–25). The older 1955/1971/1976 roadway plans contain no treatment of a pedestrian crossing that did not exist until 2010. The alleged condition that injured Plaintiff is not a designed feature at all; it is asserted to be a designed omission that no plan addressed and no engineer analyzed. Under *Cameron* and *Grenier*, this is sufficient to **deny** Caltrans’ MSJ as to design immunity as a triable issue of material fact exists on whether or not the design immunity applies or if it was lost due to significant changes performed by Caltrans. Plaintiff has produced sufficient evidence through his expert witness and the depositions of Caltrans’ own witnesses to defeat this argument on

summary judgment as a matter of law. Further, design immunity does not bar Plaintiff's failure-to-warn/ failure-to-protect theory. (*Tansavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639, 660 (*Tansavatdi*).)

The court has considered the issues concerning Sign Immunity under Government code sections 830.4 and 830.8 and Physical defect in the property that may have increased or intensified danger to users of the property to third-party conduct. The court's analysis and deciding the initial immunity issues is sufficient for its ruling on this Summary Judgment motion.

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Michael A. Dauber, Judge San Bernardino County Superior Court

